

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

RYAN STEVENS

Plaintiff,

SUMMONS

against-

Index No

NEW YORK CITY POLICE DETECTIVE REGINALD SMITH,
Shield #4482, in his individual official capacity as employee of the City
Of New York, NEW YORK CITY POLICE DETECTIVE
FRANK INGENITO, Shield #2927, in his individual official capacity as employee of the City of New
York, NEW YORK CITY POLICE DETECTIVE JOHN EDGAR, Shield #7149, in his individual official
capacity as employee of the City of New York, CITY OF NEW YORK

Defendants.

-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy
of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on
the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of
service (or within 30 days after the service is complete if this summons is not personally delivered to you
within the State of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded herein.

Dated: Brooklyn, New York

October 31, 2022

Attorney(s) for the Plaintiff

Douglas G. Rankin, Esq.
Reg #2978831
175 Pearl Street, Suite 215
Brooklyn, New York 11201
Phone: (718) 858-3000
Fax: (718) 858-9615

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RYAN STEVENS

Plaintiff,

COMPLAINT

against-

Index No.

NEW YORK CITY POLICE DETECTIVE REGINALD SMITH,
Shield #4482, in his individual official capacity as employee of the City
Of New York, NEW YORK CITY POLICE DETECTIVE
FRANK INGENITO, Shield #2927, in his individual official capacity as employee of the City of New
York, NEW YORK CITY POLICE DETECTIVE JOHN EDGAR, Shield #7149, in his individual official
capacity as employee of the City of New York, CITY OF NEW YORK

Defendants.

-----X

The Plaintiff, Ryan Stevens, through his attorney Douglas G. Rankin, Esq., alleges the following,
upon information and belief for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution, against the police officer mentioned above in their individual capacities, and against the City of New York.
2. It is alleged that the that these defendants maliciously prosecuted, violating his rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the City of New York.
3. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

STATUTE OF LIMITATIONS TOLLED

4. The statute of limitations period applicable to §1983 suits is three (3) years from date of accrual. The statutes of limitation were “tolled” in New York by Executive Order No. 202.8, issued by Governor Andrew M. Cuomo on March 20, 2020, in response to the COVID-19 pandemic. Over the next six-and-a-half months, that toll was renewed by further executive order every 30 days until, on October 4, 2020, the Governor issued Executive Order No. 202.67, announcing that the tolling order would be extended for only one more 30-day period “until November 3, 2020, and after such date [statutes of limitation] will no longer be tolled.” On November 3, 2020, the Governor issued Executive Order No. 202.72, confirming that the tolling period would no longer be in effect beginning November 4, 2020. A total tolling period of 228 days. Plaintiff was acquitted of all charges on March 18, 2019.

PARTIES

5. Plaintiff was at all material times a resident of Kings, New York and of proper age to commence this lawsuit.
6. Defendant New York City Police Detective Reginald Smith (hereinafter “Det. Smith”) was at all times relevant to this complaint duly appointed Officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.
7. Defendant New York City Police Detective Frank Ingenito (hereinafter “Det. Ingenito”) was at all times relevant to this complaint duly appointed Officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.

8. Defendant New York City Police Detective John Edgar (hereinafter “Det. Edgar”) was at all times relevant to this complaint duly appointed Officer of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.
9. The City of New York (hereinafter “The City”) is, and was at all material times, a municipal corporation duly organized and existing pursuant to the laws, statutes, and charters of the State of New York. The City operates the District Attorney’s Office, Kings County and the N.Y.P.D. a department or agency of defendant City responsible for the appointment, training, supervision, promotion and discipline of assistant district attorneys and police officers, including the individually named defendant herein.
10. The City was at all material times the public employer of defendants named herein.

FACTUAL ALLEGATIONS

11. On or about December 3, 2015, in the County of Kings, Plaintiff was traveling inside a black car service at approximately 11:00 pm, having after consumed alcohol at a friend’s home.
12. The Plaintiff was headed to 320 Lexington Avenue, County of Kings, at which point the car service stopped and Plaintiff observed flashlights on both sides of the vehicle.
13. Plaintiff observed numerous plain clothes officers and proceeded to roll down the window, at which time he observed their hands on their guns holsters and Plaintiff asked the officers, “what did I do?” The officers told Plaintiff to get out of the vehicle as Plaintiff kept asking what he did wrong, without any response. The officers kept telling Plaintiff to get out of the car. Thereafter the officers opened the passenger door and pulled plaintiff out of the vehicle, after having instructed the driver of the vehicle to unlock the door.
14. An officer proceeded to search plaintiff as Plaintiff was turned around and made to put his hands on the vehicle. The officers found no weapons nor drugs on Plaintiff’s possession.. The officers

proceeded to search the backseat of the vehicle. The officers, after reading Plaintiff's identification, the officers began guessing what gang plaintiff was affiliated with, Plaintiff denied being a member of a gang.

15. Plaintiff was placed in the back of an un-marked police vehicle and the officers proceeded to ask Plaintiff if he had any knowledge of anyone in possession of guns or weapons, Plaintiff responded in the negative.

16. Plaintiff was transported to the precinct, during which plaintiff complained of tight handcuffed twice, to no avail.

17. Plaintiff was photographed and fingerprinted and searched while at the precinct, nothing was recovered.

18. While at the precinct Plaintiff was questioned by different officers regarding his mother's neighborhood and again whether he knew of any weapons being sold, Plaintiff again answered in the negative.

19. Plaintiff while still intoxicated was tricked into writing a statement after being told by an officer that a gun was found in the vehicle. The officer told Plaintiff that a sad sob letter to the judge as to why Plaintiff shouldn't go to jail was necessary. Plaintiff repeatedly told the officer that he was not in possession of a gun, but the officer told Plaintiff without the statement he was going to go down for the gun they recovered in the vehicle.

20. Plaintiff wrote the letter, despite the officers having witnessed Plaintiff stumbling into the precinct upon his transport.

21. Plaintiff was released on \$5,000 bail, charged with criminal possession of a weapon and possession of a controlled substance. Plaintiff continued to return to court approximately once per month for the next three years, while always maintaining his innocence.

22. Plaintiff's case was dismissed March 18, 2019 after the district attorney's office provided Brady Material, exonerating Plaintiff of all charges.

COUNT ONE**42 U.S.C. § 1983****Malicious Prosecution****Against Individual Defendants Detective Reginald Smith,
Detective Frank Ingenito, Detective John Edgard**

23. Plaintiff repeats and re-alleges each and every allegation above as if fully set forth herein.

24. Defendants initiated a prosecution against Plaintiff

25. Defendants lacked probable cause to believe the proceeding could succeed

26. Defendants acted with malice, and

27. The prosecution was terminated in Plaintiff's favor

28. As a direct and proximate result of the malicious prosecution detailed

above, Plaintiff sustained the damages herein alleged.

COUNT TWO**42 U.S.C. § 1983****Against Defendant City**

29. Plaintiff incorporates by reference the factual allegations set forth above as if fully set forth herein

30. Prior to the date of the incident alleged herein, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.

31. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of widespread, systemic police misconduct, and such acts of misconduct have instead been allowed by the City of New York.

32. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officer, thereby failing to adequately discourage further

constitutional violations on the part of its police officers. The City of New York did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

33. The effects of any in-service training and re-training of officers and assistant district attorneys known to have engaged in misconduct were wholly negated by the rampant culture of misconduct and impunity sanctioned by the command structure of the New York City Police Department.
34. As a result of the above-described policies and customs, police officers, including the Defendants, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be allowed.
35. The above-described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City and were the cause of the violations of Plaintiff's rights alleged herein.

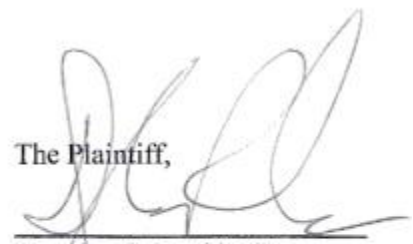
PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court:

- (a) Award compensatory damages against the Defendants, jointly and severally.
- (b) Award punitive damages against the individual Defendants, jointly and severally.
- (c) Award costs of this action to the Plaintiff.
- (d) Award reasonable attorneys' fees and costs to the Plaintiff pursuant to 28 U.S.C. § 1988.

DATED: October 31, 2022
Brooklyn, New York

The Plaintiff,



Douglas G. Rankin, Esq.
Reg #2978831
175 Pearl Street, Suite 215
Brooklyn, New York 11201
Phone: (718) 858-3000
Fax: (718) 858-9615

New York City Police Detective Reginald Smith
Crime Scene Unit
New York, New York

New York City Police Detective Frank Ingenito
Warrant Section
314 West 40th Street
New York, New York

New York Police Detective John Edgar
Criminal Enterprise Invest Sec
New York, New

City of New York
Corporation Counsel of the City of New York
100 Church Street New York, NY 10007
Phone: (212) 356-1000
Fax: (212) 356-1148